

Code of Ordinances

SUPPLEMENT HISTORY TABLE

PART I - CHARTER AND RELATED LAWS

Subpart A - CHARTER

BILL OF RIGHTS

ARTICLE 1. - NAME, POWERS, AND BOUNDARIES

Section 1-101. - Name

Section 1-102. - Powers

Section 1-103. - Legislative powers

Section 1-104. - Executive powers

Section 1-105. - Boundaries

ARTICLE 2. - LEGISLATIVE

CHAPTER 1. - THE COUNCIL

Section 2-101. - Composition; term of office

Section 2-102. - Qualifications

CHAPTER 2. - PRESIDENT OF THE COUNCIL

Section 2-201. - Election; term

Section 2-202. - Qualifications

Section 2-203. - Powers and duties; limitations

CHAPTER 3. - ORGANIZATION, RULES, OFFICERS AND EMPLOYEES

Section 2-301. - Organizational meeting; oath of office; mandatory training

Section 2-302. - Rules; quorum; voting

Section 2-303. - Meetings

Section 2-304. - Election of president pro tempore

Section 2-305. - Succession to offices of mayor and president of council

Section 2-306. - Compensation and expenses of elected officials

Section 2-307. - Municipal clerk

Section 2-308. - Staff of council and president of the council.

CHAPTER 4. - PROCEDURES OF COUNCIL

Section 2-401. - Form of legislation.

Section 2-402. - Introduction, consideration, passage, and publication of legislation.

Section 2-403. - Submission to mayor; mayor's veto.

Section 2-404. - Codes of technical regulations.

Section 2-405. - Codification and printing.

Section 2-406. - Hearings and investigations.

Section 2-407. - Relegation of pending legislation.

CHAPTER 5. - INITIATIVE AND REFERENDUM

Section 2-501. - Initiative and referendum.

CHAPTER 6. - CITY AUDITOR

Section 2-601. - Selection; removal.

Section 2-602. - Appointment of assistance and employees.

Section 2-603. - Powers and duties.

Section 2-604. - Audit committee; established: powers and duties generally; compensation.

Section 2-605. - Access to records and property.

Section 2-606. - Quality assurance reviews.

Section 2-607. - Funding of auditor's office.

Section 2-608. - Special audits.

CHAPTER 7. - ELECTED OFFICIALS COMPENSATION COMMISSION

Section 2-701. - Created.

Section 2-702. - Composition; appointment; term of office; vacancies.

Section 2-703. - Powers and duties.

Section 2-704. - Meetings; quorum; election of chairperson; compensation of members.

Section 2-705. - Assistance to commission.

ARTICLE 3. - EXECUTIVE

CHAPTER 1. - THE MAYOR

Section 3-101. - Election; term; limitation of term.

Section 3-102. - Qualifications.

Section 3-103. - Oath of office.

Section 3-104. - Powers and duties.

Section 3-105. - Delegation of powers and duties; prohibition

Section 3-106. - Mayor's staff

Section 3-107. - Investigations of departments

CHAPTER 2. - CHIEF OPERATING OFFICER

Section 3-201. - Appointment; qualifications; residency; compensation; removal

Section 3-202. - Powers and duties.

CHAPTER 3. - CITY DEPARTMENTS

Section 3-301. - General.

Section 3-302. - Administrative reorganization

Section 3-303. - City attorney

Section 3-304. - Chief financial officer

Section 3-305. - Commissioners of departments—Appointment; removal; residency; appointment of other city employees.

CHAPTER 4. - BOARDS, AUTHORITIES, COMMISSIONS, AND OTHER SIMILAR BODIES

Section 3-401. - General

Section 3-402. - Charter review commission authorized

[CHAPTER 5. - CIVIL SERVICE SYSTEM]

Section 3-501. - Civil service.

Section 3-502. - Discrimination prohibited

Section 3-503. - Residency of employees.

Section 3-504. - Credit preference.

Section 3-505. - Temporary engagement by contract, reemployment or election of persons retired under municipal laws.

Section 3-506. - Compulsory retirement; waiver of penalties

Section 3-507. - Modification of pension plans.

Section 3-508. - Regulation of complaints, fraud, waste, and abuse; definitions

CHAPTER 6. - PLANNING

Sec. 3-601. - Atlanta City Design.

Sec. 3-602. - Comprehensive development plan.

Sec. 3-603. - Five-year development plans.

Sec. 3-604. - Implementation; updating and revision.

Sec. 3-605. - Program for human and economic development

CHAPTER 7. - CITIZEN'S SERVICE PLANNING REVIEW COMMISSION

Section 3-701. - Creation; composition

Section 3-702. - Appointments; terms; vacancies

Section 3-703. - Powers and duties.

Section 3-704. - Mayor's action

Section 3-705. - Assistance to the commission

ARTICLE 4. - COURTS

Section 4-101. - Establishment; designation.

Section 4-102. - Jurisdiction, authority, and powers generally.

Section 4-102A. - Reserved

Section 4-103. - Appellate review

Section 4-104. - Judges; qualifications; term of office; appointment; oath; vacancies; compensation

Section 4-105. - Chief judge

Section 4-106. - Judicial commission

Section 4-107. - Retention of judges.

Section 4-108. - Removal of judges.

Section 4-109. - Judges pro hac vice.

Section 4-110. - Solicitor; qualifications; selection; term; assistants; duties; oath; prohibited activities; compensation; vacancies; removal

Section 4-111. - Public defender; qualifications; selection; term; assistants; duties; oath; prohibited activities; compensation; vacancies; removal

Section 4-112. - Solicitors and public defenders pro hac vice

Section 4-113. - Clerk/administrator and other court personnel

Section 4-114. - Court procedures; service of processes and orders

Section 4-115. - Codes of ethics.

Section 4-116. - Victims and witnesses assistance program

Section 4-117. - Additional penalty for municipal detention and prison facilities

Section 4-118. - Senior judge

ARTICLE 5. - ELECTIONS, REMOVAL AND CONFLICTS OF INTEREST

[CHAPTER 1. - CONDUCT OF ELECTIONS]

Section 5-101. - Applicability of general laws.

Section 5-102. - Regular elections; time for holding; voting.

Section 5-103. - Special elections; filling of vacancies.

Section 5-104. - Use of public buildings

Section 5-105. - No partisan primaries; candidates listed without party label.

Section 5-106. - Other provisions

CHAPTER 2. - COUNCIL DISTRICTS; REAPPORTIONMENT

Section 5-201. - Council districts.

Section 5-202. - Reapportionment of council districts.

CHAPTER 3. - REMOVAL OF ELECTED OFFICIALS

Section 5-301. - Recall elections

Section 5-302. - Offices to be vacated immediately upon the occurrence of certain events.

Section 5-303. - Removal of mayor for temporary inability to serve.

Section 5-304. - Removal of elected officials

CHAPTER 4. - CONFLICTS OF INTEREST

Section 5-401. - Conflicts of interest provisions applicable to city officials and employees.

Section 5-402. - Disclosures

Section 5-403. - Contracts voidable and rescindable

Section 5-404. - Ineligibility of elected officials

Section 5-405. - Hearings and determinations

ARTICLE 6. - REVENUE AND FUND ADMINISTRATION

CHAPTER 1. - REVENUE

Section 6-101. - General power of taxation.

Section 6-102. - Excise taxes

Section 6-103. - Assessment, return, and collection of city taxes

Section 6-104. - Collection of public utility taxes.

Section 6-105. - Fulton and Dekalb County territory.

Section 6-106. - Homestead exemptions

Section 6-107. - No new grant of taxing power.

CHAPTER 2. - BORROWING AND INDEBTEDNESS

Section 6-201. - Bonds to be issued and sold under general state laws.

Section 6-202. - Issuance of general obligation bonds.

Section 6-203. - Limitations upon general obligation bonds

Section 6-204. - Issuance of general obligation bonds.

Section 6-205. - Revenue bonds.

Section 6-206. - Other revenue bonds

Section 6-207. - Special assessment bonds.

Section 6-208. - Investment of surplus funds

Section 6-209. - Registration, transfer, and negotiation of bonds.

Section 6-210. - Issuance of registered bonds in lieu of coupon bonds.

CHAPTER 3. - FISCAL CONTROL

Section 6-301. - Budget commission.

Section 6-302. - Adoption of budget

Section 6-303. - Expenditures of excess in receipts over appropriations

Section 6-304. - Budget amendments.

Section 6-305. - Unlawful obligations void

Section 6-306. - Appropriations for charitable purposes.

Section 6-307. - Authority of city to contract with commissions, councils, boards, etc.

Section 6-308. - Audit

Section 6-309. - Accounting systems.

Section 6-310. - Increase in salaries

Section 6-311. - Evidence of justice of claims.

Section 6-312. - Fiscal Condition of the City Report

Section 6-313. - Pension Actuarial Audit.

Section 6-314. - Pension Experience Study

Section 6-315. - Fund balance policy.

CHAPTER 4. - PROCUREMENT AND DISPOSITION OF PROPERTY

Section 6-401. - Contracting procedures.

Section 6-402. - Purchasing procedures

Section 6-403. - Sale and disposition of property.

ARTICLE 7. - INTERIM AND GENERAL PROVISIONS

Section 7-101. - Officials; officers and employees

Section 7-102. - Existing ordinances and resolutions continued in effect

Section 7-103. - Contracts and obligations

Section 7-104. - Transfer of certain provisions to the Code.

Section 7-105. - Existing rights and interests

Section 7-106. - Section captions.

Section 7-107. - Effect of repeals.

Section 7-108. - Severability of sections.

Section 7-109. - Effective date.

Section 7-110. - Specific repeal of prior laws.

Section 7-111. - Repealer.

ARTICLE 8. - THE OFFICE OF THE INSPECTOR GENERAL

Section 8-101. - The Office of the Inspector General

Section 8-102. - Governing Board of the Office of the Inspector General

Section 8-103. - Functions of the Governing Board of the Office of the Inspector General; appeal hearings.

Section 8-104. - The Governing Board of the Office of the Inspector General; appointments; terms.

Section 8-105. - Inspector General of the City of Atlanta.

Section 8-106. - Compliance Division of the Office of the Inspector General

Section 8-107. - Independent Procurement Review Division of the Office of the Inspector General

Section 8-108. - Reserved.

Section 8-109. - Reserved

ARTICLE 9. - THE ETHICS OFFICE

Section 9-101. - The Ethics Office

Section 9-102. - Ethics Board

Section 9-103. - Functions of the Ethics Board; appeal hearings

Section 9-104. - The Ethics Board; appointments; terms.

Section 9-105. - Ethics Officer.

Section 9-106. - Ethics Office

APPENDIX I. - COUNCIL DISTRICTS

APPENDIX II. - HOUSING COMMISSION

Section 1. - Creation.

Section 2. - Purpose.

Section 3. - Composition.

Section 4. - Method of appointment.

Section 5. - Staffing.

Section 6. - Meetings, reports and recommendations.

Section 7. - Terms of office.

Section 8. - Compensation; appointment

APPENDIX III. - CIVIL SERVICE BOARD

Section 1. - Civil service board.

APPENDIX IV. - CITIZEN REVIEW BOARD

Section 1. - Establishment of the Atlanta Citizen Review Board.

Section 2. - Definitions.

Section 3. - Appointment of members.

Section 4. - Composition of board.

Section 5. - Time limit on appointments.

Section 6. - Training of board members.

Section 7. - Vacancies.

Section 8. - Organization; rules; consultations.

Section 9. - Officers.

Section 10. - Compensation; conflict of interest; removal.

Section 11. - Quorum; voting.

Section 12. - Powers and duties of the board.

Section 13. - Finding of necessity.

Section 14. - Reconsideration.

Section 15. - Resolution Review.

Subpart B - RELATED LAWS

Chapter 2 - ADMINISTRATION

ARTICLE I. - IN GENERAL

Sec. 2-1. - City paid golf professionals.

Secs. 2-2—2-35. - Reserved.

ARTICLE II. - FINANCE

DIVISION 1. - GENERALLY

Sec. 2-36. - Promotion of industry.

Sec. 2-37. - Self-insurance for motor vehicles.

Secs. 2-38—2-55. - Reserved.

DIVISION 2. - BONDS, REVENUE CERTIFICATES AND OTHER INSTRUMENTS OF INDEBTEDNESS

Sec. 2-56. - Street improvement bonds.

Sec. 2-57. - Revenue certificates for repairs and improvements in waterworks department and sanitary department

Sec. 2-58. - Revenue anticipation obligations for grandstands and stadia

Sec. 2-59. - Twelve percent debt limit

Sec. 2-60. - Stadium; retirement of construction debt.

Sec. 2-61. - Bonds for school purposes

Sec. 2-62. - Bonds for school system repairs and additions

Sec. 2-63. - Bonds for nonschool purposes

Sec. 2-64. - Revenue bonds for off-street parking.

Chapter 3 - COMMUNITY DEVELOPMENT

ARTICLE I. - IN GENERAL

Sec. 3-1. - Removal or demolition of unfit buildings or structures.

Secs. 3-2—3-35. - Reserved.

ARTICLE II. - COMMUNITY IMPROVEMENT DISTRICTS

Sec. 3-36. - Short title.

Sec. 3-37. - Purpose.

Sec. 3-38. - Definitions.

Sec. 3-39. - Creation

Sec. 3-40. - Administration, appointment, and election of board members

Sec. 3-41. - Taxes, fees, and assessments.

Sec. 3-42. - Boundaries of the districts

Sec. 3-43. - Debt

Sec. 3-44. - Cooperation with local governments.

Sec. 3-45. - Powers

Sec. 3-46. - Bonds—Generally

Sec. 3-47. - Authorized contents of agreements and instruments of the board generally; use of proceeds of sale of bonds, notes, etc.; subsequent issues of bonds, notes, etc

Sec. 3-48. - Construction; applicability of Chapter 5 of Title 10 of the O.C.G.A., the "Georgia Securities Act of 1973"; notice, proceeding, publication, referendum.

Sec. 3-49. - Dissolution.

Chapter 4 - COURTS

ARTICLE I. - IN GENERAL

Secs. 4-1—4-35. - Reserved.

ARTICLE II. - CITY COURTS

Sec. 4-36. - Court authorized

Sec. 4-37. - Establishment

Sec. 4-38. - Legislative determination

Sec. 4-39. - Jurisdiction

Sec. 4-40. - Judges—Qualifications; oath; compensation; restriction on practice of law

Sec. 4-41. - Same—Vacancies; method of appointment; removal; retirement.

Sec. 4-42. - Retention of judges; term of office; failure to be retained.

Sec. 4-43. - Chief judge; selection; chief judge pro tempore; duties

Sec. 4-44. - Authority of judges generally

Sec. 4-45. - Hearings on merits in open court; other proceedings allowed in chambers.

Sec. 4-46. - Jurors; jury trials.

Sec. 4-47. - Solicitors

Sec. 4-48. - Public defender.

Sec. 4-49. - Investigators.

Sec. 4-50. - Clerk and other court personnel; prohibition.

Sec. 4-51. - Bailiffs.

Sec. 4-52. - Constables.

Sec. 4-53. - Service by judges pro hac vice

Sec. 4-54. - Service by senior judges.

Sec. 4-55. - Solicitors and public defenders pro hac vice

Sec. 4-56. - Terms of court

Sec. 4-57. - Housing and facilities for courts

Sec. 4-58. - Violation bureau; director.

Sec. 4-59. - Probation

Sec. 4-60. - Criminal prosecutions.

Sec. 4-61. - Appellate review

Sec. 4-62. - Fines and forfeitures; priority in distribution.

Sec. 4-63. - Additional penalty—For victims and witnesses assistance program.

Sec. 4-64. - Same—For other purposes.

Chapter 4.5 - RESERVED

Secs. 4.5-1—4.5-311. - Reserved.

Chapter 5 - HEALTH AND SANITATION

Sec. 5-1. - Authority of state legislature in connection with health and sanitation in Fulton County and Atlanta

Sec. 5-2. - Atlanta, Fulton County and DeKalb County may contract with each other or with a hospital authority

Chapter 6 - PENSIONS

ARTICLE I. - IN GENERAL

Sec. 6-1. - Interest on refunds

Sec. 6-2. - Retirement Benefits

Sec. 6-3. - Credit for service while covered by the City of Atlanta 2010 Defined Benefit Pension Plan

Secs. 6-4—6-35. - Reserved

ARTICLE II. - NONUNIFORMED OFFICERS AND EMPLOYEES

DIVISION 1. - GENERALLY

Sec. 6-36. - Establishment of funds

Sec. 6-37. - 1978 Pension Act

Sec. 6-38. - 1978 recomputation benefits

Sec. 6-39. - Consent by applicant to participate in system

Sec. 6-40. - Refunds regulated

Sec. 6-41. - Transfer of funds where participant appointed or elected to position having pension system.

Sec. 6-42. - Transfer of funds where hospitals taken over.

Sec. 6-43. - Deductions from salaries, wages.

Sec. 6-44. - Additional deduction when wife is named beneficiary.

Sec. 6-45. - Same; effect of objection to deductions from salaries and wages.

Sec. 6-46. - Participation in fund compulsory; scope of provisions.

Sec. 6-47. - Participation in fund upon attaining salary level.

Sec. 6-48. - Employees ineligible for participation.

Sec. 6-49. - Eligibility of officers and employees of traffic court.

Sec. 6-50. - Eligibility of officers and employees of joint city-county board of tax assessors; conditions.

Sec. 6-51. - Member leaving, reentering service; payment required.

Sec. 6-52. - Same; notice required for employee reentering service.

Sec. 6-53. - Right to retirement; generally.

Sec. 6-54. - Same; compulsory retirement at age 70.

Sec. 6-55. - Same; compulsory retirement provisions inapplicable to city attorney.

Sec. 6-56. - Same; rights of officers who are not reelected or reappointed or whose offices are abolished.

Sec. 6-57. - Rights of discharged persons.

Sec. 6-57.1. - Rights of those terminated through reduction in force between December 31, 2001 and December 31, 2003.

Sec. 6-58. - Rights of officers, employees of annexed territory; service credit, contributions.

Sec. 6-59. - Transferred officers, employees; transfer from one department to another; service credit; contributions.

Sec. 6-60. - Transferred officers, employees; transfer from city to county or from county to city.

Sec. 6-61. - Transfer from county to city; terms, conditions.

Sec. 6-62. - Same; officers, employees reentering employment of political subdivision where employed prior to transfer to city.

Sec. 6-63. - Same; applicability to board of education.

Sec. 6-64. - Same; rights of officers, employees of board of education.

Sec. 6-65. - Same; credit for service of officers and employees transferred to city from county or county board of education

Sec. 6-66. - Same; transfer from city to county employment

Sec. 6-67. - Same; transfer of golf professional from city to county employment

Sec. 6-68. - Same; credit for service of employee not previously authorized

Sec. 6-69. - Service requirements—Persons employed on or after April 1, 1945; applicability

Sec. 6-70. - Service credits; employees working nine months per year.

Sec. 6-71. - Same; service in the armed forces; terms, conditions

Sec. 6-72. - Same; rights of officers, employees inducted into armed forces.

Sec. 6-73. - Same—officers and employees serving in Korean conflict, or subsequent thereto.

Sec. 6-74. - Credit for prior service; terms, conditions

Sec. 6-75. - Credit for government service

Sec. 6-76. - Closing of schools, effect on employees of board of education

Sec. 6-77. - Credit for prior service as member of General Assembly

Sec. 6-78. - Prior service credit for cafeteria employees of board of education.

Sec. 6-79. - Dependents of officers, employees; designation as beneficiary of pension benefits

Sec. 6-80. - Light-duty status.

Sec. 6-81. - Effect of disqualification of beneficiary.

Sec. 6-82. - Notice of election to participate for benefit of beneficiary, required.

Sec. 6-83. - Widows' rights; generally

Sec. 6-84. - Same; amount to be received

Sec. 6-85. - Same; computation, payment of benefits.

Sec. 6-86. - Spendthrift provisions.

Sec. 6-87. - Reemployment of pensioners; eligibility, conditions, applicability.

Sec. 6-88. - Effect on workers' compensation laws

Sec. 6-89. - Effect on other pensions; effect of receipt of other pensions

Sec. 6-90. - Computations of time; fractional parts of years to be counted.

Sec. 6-91. - Salary and earnings.

Sec. 6-92. - Distribution Requirements

Sec. 6-93. - Limitation on benefits.

Sec. 6-94. - Treatment of employee contributions for prior service with certain other employers.

Sec. 6-95. - Limitation on monthly earnings

Sec. 6-96. - Uniformed Services Employment and Reemployment Rights Act

Sec. 6-97. - Supplemental benefit arrangement.

Sec. 6-98. - Eligible rollover distributions

Sec. 6-99. - Employees of the Atlanta Independent School System.

Sec. 6-100. - Exclusive benefit

Sec. 6-101. - Minimum vesting standards

Sec. 6-102. - Credit for service while covered by the City of Atlanta Defined Contribution Plan.

Sec. 6-103. - Thirty-year retirement.

Sec. 6-104. - Application of Pension Modification pursuant to City Related Laws Section 6-2.

Secs. 6-105—6-140. - Reserved.

DIVISION 2. - BOARD OF TRUSTEES

Sec. 6-141. - Board of trustees; constituted, membership, duties

Sec. 6-142. - Appeals; procedure

Sec. 6-143. - Investment of excess funds

Sec. 6-144. - Actuarial investigation.

Secs. 6-145—6-170. - Reserved.

DIVISION 3. - BENEFITS

Sec. 6-171. - Amount of pension, maximum designated

Sec. 6-172. - Reduction of certain pensions

Sec. 6-173. - Employees dying with not less than 10 years' service; benefits payable.

Sec. 6-174. - Employee killed in line of duty; benefits payable.

Sec. 6-175. - Disability benefits; generally.

Sec. 6-176. - Refunds of employees dying.